

IN THE HOUSE OF REPRESENTATIVES

HOUSE JOINT MEMORIAL NO. 9

BY RESOURCES AND CONSERVATION COMMITTEE

A JOINT MEMORIAL

TO THE PRESIDENT OF THE UNITED STATES, THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE UNITED STATES IN CONGRESS ASSEMBLED, THE CONGRESSIONAL DELEGATIONS REPRESENTING THE STATES OF IDAHO, UTAH, NEVADA, AND WYOMING IN THE CONGRESS OF THE UNITED STATES, THE UNITED STATES ATTORNEY GENERAL, AND THE SECRETARY OF THE INTERIOR.

We, your Memorialists, the House of Representatives and the Senate of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, the Bureau of Land Management (BLM) administers 245 million acres of public lands, which equates to roughly one tenth of all land in the United States; and

WHEREAS, Idaho, like most other western states, has large portions of land managed by BLM within its borders; and

WHEREAS, BLM land, and other federally owned land, is often intermingled with state and private lands, so exchanges and other disposal options are vital tools for administering such lands and achieving important recreation, community development, wildlife conservation, and resource development objectives, such as timber harvesting, mining, and energy projects; and

WHEREAS, given BLM's large ownership interest of lands within the United States, particularly within Idaho, and the intermingled nature of these lands, it is critical to Idaho, as it should be to the nation, that these lands are predictably managed in accordance with laws that were adopted to ensure orderly and consistent administration of such lands; and

WHEREAS, the federal government once managed these public lands under a patchwork of some 3,000 public land laws; and

WHEREAS, in 1964, Congress charged a commission to bring order to the process and propose ways to rationalize and systematize the management of public lands; and

WHEREAS, in 1976, Congress acted on these recommendations by enacting the Federal Land Policy and Management Act (FLPMA). FLPMA is the comprehensive system for predictably managing public lands for multiple uses. The statute broadly applies to any land and interest in land owned by the United States, without regard to how the United States acquired ownership, that is administered by the Secretary of the Department of the Interior, wherein BLM resides; and

WHEREAS, FLPMA provided the tools vital to administering intermingled lands by establishing uniform procedures for the disposal of federally owned public land, including the authority and procedures to exchange public lands for non-federal lands, when it is in the public interest; and

WHEREAS, for the past 50 years, FLPMA's broad authority for conducting land exchanges has been universally recognized and acknowledged; however,

1 a legal decision originating in Idaho threatens FLPMA's comprehensive
2 process; and

3 WHEREAS, Congress needs to immediately reaffirm FLPMA's primary in-
4 tent. Failure to act may have far-reaching consequences in Idaho, including
5 encumbering the management of millions of acres across the West, along with
6 threatening the certainty of other completed FLPMA land exchanges and dis-
7 posals.

8 NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Ses-
9 sion of the Sixty-eighth Idaho Legislature, the House of Representatives and
10 the Senate concurring therein, that the Idaho Legislature strongly urges the
11 Congress of the United States to, as expeditiously as possible, enact legis-
12 lation reaffirming that FLPMA is the proper and primary avenue to facilitate
13 effective federal land management and disposal, including by land exchange.

14 BE IT FURTHER RESOLVED that as intended by Congress and provided for in
15 FLPMA, previous land disposal laws should not be interpreted to conflict
16 with or override FLPMA's disposal authority. Such expeditious action by
17 Congress will prevent the West from being pushed back into the management
18 chaos that Congress fixed in 1976 by enacting FLPMA.

19 BE IT FURTHER RESOLVED that the Chief Clerk of the House of Represen-
20 tatives be, and she is hereby authorized and directed to forward a copy of
21 this Memorial to the President of the United States, the President of the
22 Senate and the Speaker of the House of Representatives of Congress, the con-
23 gressional delegations representing the states of Idaho, Utah, Nevada, and
24 Wyoming in the Congress of the United States, the United States Attorney Gen-
25 eral, and the Secretary of the Interior.